

24STCV01381 24STCV01381

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-30

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Case Number: 24STCV01381 Hearing Date: July 30, 2026 Dept: 516

GENERAL JURISDICTION

DEFAULT JUDGMENT

Case Name: Circa

1200, LLC v. Marcus

Case Number: 24STCV01381

Date: July 30, 2026

Defendant(s) Against Whom Default Judgment is Sought: Defendant

Michael Marcus

DENIED.

Plaintiff's requests for

damages in the amount of \$74,191.82 does not exceed the amount sought in the operative pleading. (Compl., p. 2.) Thus, the amount requested in damages is not improper.

(Code Civ. Proc., § 580.) Further, Plaintiff submits adequate evidence to substantiate the damages sought. (Garner Decl., ¶¶ 3-4, Ex. A, Ex. B.) However, Plaintiff did not file a mandatory CIV-100. (California Rules of Court, Rule 3.1800(a).)

Plaintiff also seeks

prejudgment interest in the amount of \$34,433.14, which accrued at a rate of 10% per annum starting from November 30, 2022, to May 18, 2026. (Garner Decl., ¶ 4.) However, in the same declaration, Plaintiff contends that it seeks prejudgment interest from September 28, 2021, to May 18, 2026. (Id. at ¶ 5.) Thus,

the interest calculation is unclear and not in accordance with California Rules of Court, Rule 3.1800(a)(3).